

Amendment No. 1 to SB1258

Briggs
Signature of Sponsor

AMEND Senate Bill No. 1258*

House Bill No. 1267

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 2-6-202(c), is amended by adding the following as a new subdivision:

(7) Subdivisions (c)(3) and (4) do not apply to correctional institution staff or other staff of an incarcerating or confining authority, as defined in Section 4, who distribute absentee ballot applications to incarcerated or confined individuals as part of their official duties.

SECTION 2. Tennessee Code Annotated, Section 2-2-115(b)(7)(B), is amended by adding the following as a new subdivision:

(iii) A person who is eligible to vote and who is incarcerated or housed inside a correctional institution, youth development center or other youth correctional facility, or a residential community-based program option, as provided in § 40-36-302.

SECTION 3. Tennessee Code Annotated, Section 2-6-201, is amended by adding the following as a new subdivision:

(10) **Incarcerated or confined voter.** If the individual is not disqualified from voting by a judgement of infamy under the laws of this state and is otherwise eligible to vote, and is incarcerated or housed inside a correctional institution, youth development center or other youth correctional facility, or a residential community-based alternative to incarceration, as defined in § 40-36-102. For purposes of voting absentee, a qualified individual under this subdivision (10) is presumed to reside at the individual's last free-

world residence prior to incarceration or confinement, unless a contrary intent is shown pursuant to § 2-2-122.

SECTION 4. Tennessee Code Annotated, Title 2, Chapter 6, Part 2, is amended by adding the following as a new section:

(a) As used in this section:

(1) "Applicable election" means a special election, primary election, or general election, or other election in which a person is eligible to vote;

(2) "Correctional institution" means a correctional facility, prison, local or county jail, workhouse, penal farm, youth development center or other youth correctional facility, or a residential community-based program option, as provided in § 40-36-302;

(3) "Incarcerated or confined individual" means an individual confined to a correctional institution, youth development center or other youth correctional facility, or a residential community-based program option, as provided in § 40-36-302; and

(4) "Incarcerating or confining authority" means a sheriff, prison warden, custodians, or other administrators charged with the operation of a correctional institution, including the officers or staff employed at such facility.

(b) If casting an absentee ballot, an incarcerated or confined individual who is eligible to vote shall follow the absentee ballot voting by mail provisions as described in this chapter; provided, that upon receiving an absentee ballot application, the registrar shall confirm that the applicant is not disqualified from voting by a judgment of infamy under the laws of this state. If the voter is no longer at the correctional institution when the absentee ballot is sent to the correctional institution, the incarcerating or confining authority shall return the ballot to the county election commission that sent the absentee ballot with the stated reason for returning it. The incarcerating or confining authority and the county election commission may coordinate to allow county election commission

staff to personally collect completed registration forms and absentee ballot applications as needed to facilitate the timely return of such forms and applications by the relevant deadlines.

(c) The incarcerating or confining authority shall establish a day, on or within the seventh day before an applicable election, for eligible incarcerated or confined individuals at the correctional institution to cast their ballots. The correctional institution shall designate a room at the institution for the purpose of permitting eligible incarcerated or confined individuals to vote in secrecy, and eligible voters shall be taken to the selected room to cast the ballot in secret. If such a day has been designated, the county election commission shall dispatch an attesting individual who will be present at each correctional institution over which the commission has jurisdiction and who will attest each absentee ballot voted by mail in accordance with this chapter. In addition, the county election commissioners of the minority party may appoint one (1) attesting official. Correctional institution staff shall not come within ten feet (10') of the voter who is completing a ballot, unless requested by the attesting officials. After the absentee ballot is cast and attested, the attesting officials shall deposit the absentee ballots in the nearest United States post office. This subsection (c) does not preclude a voter from completing and returning their absentee ballot at a day and time other than the designated day.

(d) The incarcerating or confining authority or county elections commission shall provide a voter registration application or an absentee ballot application if requested by the individual, and may assist the individual with completing and submitting such applications.

(e) Each incarcerating or confining authority shall designate at least one (1) individual to facilitate voting for confined eligible electors at the correctional institution. This designee is responsible for coordinating the correctional institution's compliance with this section and other applicable voting laws, including, but not limited to:

- (1) Coordinating with the county election commission's voting designee;
- (2) Facilitating registration of eligible voters;
- (3) Providing absentee ballot applications;
- (4) Communicating relevant voting deadlines;
- (5) Informing incarcerated or confined individuals regarding how to register and vote;
- (6) Developing procedures for collaboration with the county election commission, volunteers approved by the incarcerating or confining authority, nonprofit organizations, and other stakeholders;
- (7) Ensuring the timely return of an application for an incarcerated or confined individual to be permitted to register or vote by absentee ballot; and
- (8) Notarizing voting documents as required.

(f) Each county administrator of elections shall designate at least one (1) individual to facilitate voting for confined eligible electors at a correctional institution. This designee is responsible for coordinating the county election commission's compliance with this section and other applicable voting laws, including, but not limited to, coordinating with voting designees from correctional institutions as needed.

(g) No later than one hundred twenty (120) days before an applicable election, each incarcerating or confining authority must distribute voter education and election information regarding the voter eligibility requirements, relevant deadlines, and procedures for voting while incarcerated, including, but not limited to:

- (1) The display of posters in prominent locations visible to individuals who are incarcerated or housed at the facility;
- (2) The dissemination of written notices about voting rights and procedures to all individuals who are incarcerated or housed at the facility and who may be eligible to vote; and

(3) If tablets are accessible to incarcerated or confined individuals, upload such notices to the tablets.

(h) Each incarcerating or confining authority shall:

(1) Provide to incarcerated or confined individuals candidate information and sample ballots generated by the secretary of state or the county election commission of the incarcerated or confined individuals, as available; and

(2) Permit the dissemination of nonpartisan candidate information to incarcerated or confined individuals.

(i) No later than one hundred twenty (120) days before an applicable election, each county election commission shall post a notice on the county's website regarding how to vote while incarcerated, including, but not limited to, the voter eligibility requirements, relevant deadlines, and procedures for voting while incarcerated.

(j) The county election commission shall provide sufficient voter registration by mail forms and absentee ballot applications at each correctional institution.

(k) Each county election commission and incarcerating or confining authority shall provide eligible incarcerated or confined individuals with a reasonable opportunity to cure signatures, if applicable, before rejecting an absentee ballot request or an absentee ballot if the county election commission determines that the signature does not match the signature on the voter registration application.

(l) No later than sixty (60) days after each applicable election, each county election commission shall compile a report indicating:

(1) The number of incarcerated or confined voters who requested an absentee voting ballot in that county and the outcome of that request, including the reasons for rejection, if rejected; and

(2) The number of individuals registered in that county who successfully voted while incarcerated. This report shall be available on the county election commission's website.

(m) Each incarcerating or confining authority shall:

(1) Provide incarcerated or confined individuals with access to a writing instrument sufficient to properly complete a voter registration form, absentee ballot application, absentee ballot, or other paperwork necessary to cast their ballot;

(2) As needed, provide records, if in the possession of the correctional institution, for the individual to complete registration forms, absentee ballot requests, or the ballot, including, but not limited to, documents with the individual's last known address, social security number, or other necessary information; and

(3) Provide sufficient postage for mailing to the elections office the voter registration application, absentee ballot application, and completed absentee ballot.

(n) The incarcerating or confining authority shall provide each incarcerated or confined individual with a reasonable amount of privacy to vote.

(o) Incoming mail from an elections office to an incarcerated or confined individual and outgoing mail from the incarcerated or confined individual to an elections office must be marked and treated as legal mail. Such mail must not be opened or inspected by correctional institution staff unless it is to investigate a reasonable suspicion of prohibited activity.

SECTION 5. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 6. This act takes effect upon becoming a law, the public welfare requiring it.